DECODE UPSC with Mounika

Reel: The two-child rule and the Supreme Court

Reading script · English + తెలుగు

Script

What if having a third child could stop you from contesting a panchayat election?

ఇది చాలా states లో నిజంగా జరిగింది.

But this week the Supreme Court said such laws may have lost their relevance.

ఎందుకు? Let’s decode.

This week, hearing a Maharashtra sarpanch’s case, the Supreme Court said laws that disqualify people with more than two children have lost relevance, and sent its 2003 Javed judgment, which upheld such a law in Haryana, to a larger bench.

అంటే, final decision ఇంకా రాలేదు.

Why now? Because India’s total fertility rate has fallen from about 3 in 2003 to 1.9, below the replacement level of 2.1. Rural India is at 2.1, cities at just 1.5.

But who makes such rules? Article 243F of the Constitution lets each state’s law decide who is disqualified from panchayats, and the Court now asks whether punishing family size hurts reproductive choice under Article 21.

ఇక మన Telugu states: Andhra Pradesh had this rule since 1994 and scrapped it in 2024, and Telangana removed it for rural local bodies in 2026, saying its rural fertility is just 1.7.

Prelims trap: the Supreme Court has not struck down the two-child norm; it only referred the question to a larger bench.

ఇది గుర్తుపెట్టుకోండి!

Mains debate: should population policy use incentives or penalties?

మీ అభిప్రాయం comments లో రాయండి, and follow for one exam trap every day!

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Title:

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Two-Child Rule: Did the Supreme Court Strike It Down? #UPSC #Shorts
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Description:

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Can a third child stop you from contesting a panchayat election? This week the Supreme
Court said two-child rule laws "have lost relevance" and sent its 2003 Javed v. State of
Haryana judgment to a larger bench. Here is everything UPSC can ask.

📌 Why now: India's total fertility rate fell from about 3 (2003) to 1.9 (Sample
Registration System, 2023), below the replacement level of 2.1; rural 2.1, urban 1.5.
📌 Articles: Article 243F (a State's law decides panchayat disqualifications); Article 21
(reproductive choice).
📌 Telugu States: Andhra Pradesh scrapped the rule in 2024 (in force since 1994);
Telangana removed it for rural local bodies in 2026 (rural fertility 1.7).
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⚠️ Prelims trap: the Court has NOT struck down the two-child rule; it only referred the question to a larger bench.
✍️ Mains: should population policy use incentives or penalties? Write your answer in the comments!

Explained in English and Telugu.
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🧠 Quick test: Consider these statements:
1. In November 2026 the Supreme Court struck down the two-child rule for panchayat elections.
2. Article 243F allows a State law to lay down disqualifications for panchayat membership.
3. India's total fertility rate in 2023 was below the replacement level of 2.1.
How many are correct? (a) Only one (b) Only two (c) All three (d) None
Comment your answer! ✅ Answer: (b) Only two: statements 2 and 3 (the Court only referred the question to a larger bench).